

25STCV21405 25STCV21405

County: los-angeles

Division: Civil Law and Motion

Department: 509

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Case Number: 25STCV21405 Hearing Date: August 7, 2026 Dept: 509

Talisha Williams, et al. v. County of Los Angeles, et al.

MOTION FOR TERMINATING SANCTIONS

MOVING PARTY: Defendant County of Los Angeles

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiffs Talisha Williams, Destiny Simpson, Jazmyn Alexander, Briana Williams, and Chaniel Williams (Plaintiffs) bring this action against defendants County Of Los Angeles, Los Angeles County Probation Department, Los Angeles County Office of Education, State of California, Los Angeles Philharmonic Association, Los Angeles Master Chorale Association, and Walt Disney Concert Hall for injuries sustained as a result of a fight during a graduation ceremony at the Walt Disney Concert Hall. Plaintiffs' complaint alleges causes of action for: (1) negligence, (2) dangerous conditions of public property, and (3) premises liability.

On February 2, 2026, County of Los Angeles filed a cross-complaint against the Los Angeles County Office of Education for declaratory relief, indemnification and apportionment of fault.

Defendant County of Los Angeles now moves for terminating sanctions. No opposition was filed. [FN 1]

TENTATIVE RULING:

County of Los Angeles's Motion for Terminating Sanctions is GRANTED. The Complaint is ordered DISMISSED WITH PREJUDICE. [FN 2]

Moving Party is ordered to give notice.

DISCUSSION:

Motion for Terminating Sanctions

I. Legal Standard

The Court has the authority to impose sanctions against a party that engages in the misuse of the discovery process. (Code Civ. Pro. § 2023.030.) Misuse of the discovery process includes disobeying a court order to provide discovery. (Code Civ. Pro. §§ 2023.010(g).) A party engaging in this conduct may be subject to sanctions including monetary, issue, evidence, or terminating sanctions. (Code Civ. Pro. § 2023.030(a)-(d).) 2

The Court must “tailor the sanction to the harm caused by the withheld discovery.” (Collisson & Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1618-1619.) “[C]ontinuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal. App. 4th 967, 992.)

In deciding whether to impose a terminating sanction, the trial court is to consider the totality of the circumstances: the “conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.” (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.)

II. Analysis

The County of Los Angeles now moves for terminating sanctions against all Plaintiffs.

On January 3, 2026, the County of Los Angeles propounded discovery on Plaintiffs. (Logan Decl. ¶12.) On April 17, 2026, the County of Los Angeles filed a total of ten motions to compel initial responses as to the discovery propounded on all five Plaintiffs, one set of RFAs and one set of Special Interrogatories each. (Logan Decl. ¶¶8-9.) Plaintiffs filed no opposition. (Logan Decl. ¶10.) On May 26, 2026, the Court heard these motions to compel and ordered the Plaintiffs to serve complete responses to all of the Discovery, without objection, within thirty (30) days of the date of the hearing. (Logan Decl. ¶12, 5/26/26 Minute Order.) The Court sanctioned Plaintiffs \$350 per motion. (5/26/26 Minute Order.) To date, the Plaintiffs have served no responses to the ordered discovery. (Logan Decl. ¶15.)

The Los Angeles County's motion also offers this discovery violation is a portion of the overarching pattern of noncompliance in this action. For example, on February 2, 2026, this Court issued an order compelling the Plaintiffs to respond to discovery served by former defendants Performing Arts Center and Los Angeles Philharmonic Association. (2/2/26 Minute Order.) After a similar motion for terminating sanctions was filed, Plaintiffs dismissed defendants Performing Arts Center and Los Angeles Philharmonic Association on April 13, 2026, before such motion could be heard. (4/3/26 Motion for Terminating Sanctions; 4/13/26 Request for Dismissal.) It appears that Plaintiffs have not complied with any requests for discovery from any defendant thus far.

Here, based on Plaintiffs' failure to respond to discovery in violation of court orders and the failure of any plaintiff to oppose this motion, Plaintiffs have apparently abandoned their action. If nothing else, the continued misuse of the discovery process evidences Plaintiffs' willful indifference to this Court's orders. Considering the totality of the circumstances here, including that lesser monetary sanctions have been insufficient to encourage compliance, terminating sanctions are appropriate and warranted.

Accordingly, County of Los Angeles's Motion for Terminating Sanctions is GRANTED.

IT IS SO ORDERED.

Dated: August 7, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Plaintiffs' counsel of record, HG Law, APC, was served on July 1, 2026, via email. (See Mot. at p. 20/21.)

FN 2 - It is unclear whether the County still wishes to pursue its Cross-Complaint.